

**Placer County Superior Court  
10820 Justice Center Drive, Roseville**

**PROBATE CALENDAR NOTES  
May 15, 2026, 8:30 AM, Department 40**

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**NOTICE: CHANGE OF CALENDAR DEPARTMENT AND DATES**

**Beginning July 6, 2026, the Probate Calendar will be heard Mondays, 8:30 a.m., in Department 2, located at the Historic Courthouse, 101 Maple Street, Auburn. Hearings will automatically be rescheduled by the clerk's office and notices will be sent to petitioners. Petitioners may be required to re-serve and / or re-publish updated or corrected notices as the circumstances of each case may require. For further information, contact the clerk's office at (916) 408-6000.**

These calendar notes are provided pursuant to Local Rule 80.1.4 for the probate calendar set for hearing **May 15, 2026, 8:30 AM, in Department 40**, Commissioner Christine S. Dehr, presiding.

Pursuant to Local Rule 80.1.4, these calendar notes are not a tentative ruling on the merits of any matter before the court. Remote appearances are generally available for this calendar, as provided in the Local Rules. Local Rule 10.24(G), governing remote appearances for most probate, conservatorship, and guardianship cases applies to this calendar.

Updated notes may be posted at any time and will generally be updated the court day prior to the hearing. Staff may respond to limited questions concerning calendar notes; however, court staff may not give legal advice to parties or attorneys. Messages may be left for the Office of Legal Research at (916) 408-6119.

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**1. S-PR-0009374 Sagaria, Scott Joseph - Estate of**

Status hearing

Appearance is required for continued status hearing.

Amended 1st / 2d practice administrator accounts

Appearance is required for continued hearing on 1st / 2d practice administrator accounts.

Amended petition objecting to accounts, to surcharge practice administrator, and re breach

Appearance is required for continued hearing on amended petition objecting to accounts, to surcharge practice administrator, and re breach.

**2. S-PR-0010165 Kelsey, Anna Fey- In re the Estate of**

Appearance is required for hearing on second final distribution petition.

Personal representative response is needed: personal representative's original petition for final distribution did not request authorization to withhold a \$50,000 reserve for any purpose, much less for to address "possible taxes from the sale of decedent's residence and possible questions on determination of heirs." 2d Final Distribution Petition, ¶ 5. The only authorized reserve was \$2,500, and the sole heir of decedent was fixed and determined to be James Bartlett. Final Distribution Order, filed May 26, 2023, ¶¶ 9–11. The original final distribution petition reported that decedent's residence was sold in June 2021, consistent with the court's June 2021 order confirming sale. 1st Final Distribution Petition, account schedule F; Order Confirming Sale filed June 1, 2021. Personal representative does not sufficiently explain why the large unauthorized reserve was retained for nearly 4 years after sale of the property and nearly 2 years after the order to distribute the estate. Points and authorities are needed showing the legal basis for personal representative's actions in light of the court's order to distribute and Prob.C. § 11641.

**3. S-PR-0010328 Clement, James Wesley ; In re the Estate of**

Appearance is required for hearing on petition for final distribution and to waive 2d / final account.

Missing sufficient notice of hearing. The clerk erroneously indicated to petitioner that his matter would be heard Monday, May 18, and correct the hearing date by notice

provided to petitioner's attorney April 28. Missing notice of hearing for the corrected May 15 hearing date. Missing service of notice of hearing.

Court determination is needed as to the following issues concerning the request for extraordinary fees:

In proceedings in 2023, the court awarded \$15,000 in extraordinary fees. It is unclear from the court hearing minutes and the order after hearing whether the \$15,000 was intended to resolve the extraordinary fees request through 2023, or was merely an advance on all extraordinary fees which the court would only finally determine later. Court determination as to the character of the \$15,000 fees awarded is needed.

In proceedings in 2023, the court made a tentative determination that attorney and staff rates requested by personal representative's counsel for extraordinary attorney fees exceeded reasonable rates. This tentative determination was not included in the order after hearing, for reasons not revealed in the order or in the court's hearing minutes. Petitioner's revised extraordinary fees requests adjusted rates for all billing attorneys and staff in line with the court's tentative determination except for David Kelly Esq and paralegal Sherri Handley. As to Kelly, petitioner requests \$495/hr from April 2020; the court's tentative determination was that fees through January 2023 should be limited to \$425/hr. As to Handley, petitioner requests \$225/hr from April 2020; the court's tentative determination was that fees through January 2023 should be limited to \$200/hr. Court determination is needed as to reasonableness (or lack thereof) of fees at the higher rates now requested.

Petitioner's request for extraordinary fees includes substantial billings for inappropriate work related to the guardian ad litem appointment for beneficiary Benjamin Clement, who reached the age of majority in June 2022. Counsel billed approximately \$6,000 for services to relieve GAL of her appointment after June 2022 which resulted in a petition to terminate *probate guardianship of the estate*, including requests to waive the filing of an inventory and appraisal and a final account. No guardianship of the estate was ever established. As noted in 2023, Probate Code provisions for guardian of the estate such as the requirement to file an inventory and appraisal and accounts have no application to a GAL. The GAL, by her appointment, had no authority to marshal or manage any assets for minor in any event. A review of pages 12–14 of counsel's revised billing statements shows up to \$6,688.00 in line-item entries involving unnecessary work to vacate the GAL appointment. It is recommended the extraordinary fees request be reduced by \$6,000. Court determination is needed.

Finally, it is requested the court determine that GAL-related fees which are allowed be charged against the estate generally, as prayed, rather than solely against the distributive share for Benjamin Clement.

These calendar notes are not a tentative ruling by the court on the merits of the petition. They are provided to assist the court and the parties to prepare for the hearing. Local Rule 80.1.4.

**4. S-PR-0010429 Ugo G Cuneo & Leonora Cuneo Rev Trust; In re the**

Petition for guardian at litem compensation and attorney fees is recommended for approval as prayed.

**5. S-PR-0012045 In Re the Rovianne L Brown Fam Trust**

Appearance is required for hearing on petition to instruct trustee re division and distribution of trust assets.

**6. S-PR-0012652 In Re the Estate of Plympton, James Timothy Jr.**

It is recommended the petition for final distribution and instructions be denied, as follows.

Petitioner incorrectly calculates personal representative and attorney fees. Disposition of estate vehicles by repossession does not result in a total loss to the estate. The repossessing creditor credits each automobile indebtedness account with the proceeds of the repossession sale, resulting in either a gain or loss on sale depending on the amount of proceeds. Where repossessing creditor neither claims a deficiency amount or refunds surplus proceeds, the repossession is scheduled in an account as a no-gain / no-loss disposition for the full asset value. Personal representative and attorney fees should be recalculated after this account error is resolved.

Extraordinary attorney fees are not supported by a sufficient C.R.C. 7.702 declaration. Counsel's declaration does not include any of the showing required by C.R.C. 7.702.

The estate includes insufficient cash to pay personal representative and attorney fees as requested. Clarification or revision is needed; the court will not ordinarily award fees where there is no ready means to pay them.

Revised account is needed. Account includes two disbursements described as "mistaken" use of the estate checking account without explanation or repayment of misused funds. Account improper includes Schedule E, liabilities, as credits. Assets on hand are not liabilities of the estate; any liabilities that require disclosure are not credits but instead are listed solely on an auxiliary schedule. Prob.C. §§ 1061(a)(10) & (b), 1062(f), 1063(a) & 1063(g).

The estate is not in a condition to be closed. Three filed creditor claims (Ally Bank, Verizon, JP Morgan Chase) remain outstanding and have not be approved or rejected by personal representative. Creditors *may* but are not required to deem claims rejected where personal representative has failed to act within 30 days (Prob.C. § 9256). There is no evidence any creditor has done so. Until the claims are resolved, estate administration cannot be closed because the time to bring an action on the claims as not run. Prob.C. § 9352(a). Additionally, petitioner seeks to pay herself for unfiled and time-barred creditor

claims (see discussion, below), to the exclusion of the pending claims with no legal support for the request to favor herself over other creditors.

Petitioner's request for distribution of the estate's interest in real property is contrary to law. Petitioner is not an heir or devisee of decedent and has no right whatsoever to distribution of assets of the estate.

To the extent petitioner's request to receive estate property may be characterized as a request to approve disbursements to petitioner for creditor claims, the request fails and must be denied. Petitioner seeks repayment of \$10,000 and \$146,617.00 used to purchase estate real property with decedent, as well as \$42,916.66 used to pay off certain debts of decedent before the real property was purchased. Petitioner offers no legal or factual support whatsoever for these claims. Even if decedent were liable for repayment of these amounts (e.g., if they had been enforceable loans by petitioner), no creditor claims of any kind were filed by petitioner and any such claims are long since time-barred. Prob.C. § 9200(a); C.C.P. § 366.2. Neither the court nor personal representative may approve time-barred creditor claims. Prob.C. § 9253.

To the extent petitioner's request to receive estate property may be characterized as a request to approve disbursements to petitioner for advances to the estate, the request appears well supported in part. Post-death loan payments are reasonably characterized as advances to the estate for costs of administration / maintenance of estate assets as to decedent's 1/2 liability for the real property indebtedness. On the information provided in the petition (loan payments through December 2023), it appears the advances total \$39,828.92 (the other one-half applying only to personal representative's personal liability for 1/2 of the real property indebtedness). Petitioner does not allege whether similar monthly advances have continued since January 2026. Advances to the estate appear to be payable before creditor claims. As above, these are disbursements from the estate and not distributions. Even if the court were to approve disbursement for such reimbursable advances to the estate, petitioner has shown no legal basis to make such disbursement in kind where estate administration also requires payment of many other costs and claims.

Missing guardian ad litem or other fiduciary for minor heir Gabriel Plimpton. Petitioner proposes to eliminate all of minor's interest in the estate on unsupportable grounds, as above. Minor's rights and interests cannot be compromised without a suitable fiduciary having notice and opportunity to be heard. Petitioner has not shown that minor's parent is a guardian of the estate or other fiduciary who may appear to represent minor's interests in these proceedings.

These calendar notes are not a tentative ruling by the court on the merits of the petition. They are provided to assist the court and the parties to prepare for the hearing. Local Rule 80.1.4.

Petition to administer estate (E Vlk)

Appearance is required for continued hearing on petition to administer estate.

This matter was continued from the November 21, 2025, probate law and motion calendar to the May 15, 2025, probate law and motion calendar. Although the court indicated one purpose of the May 15 hearing would be possible referral to a trial assignment conference calendar, this matter has not been scheduled for any trial assignment conference or trial.

Petition to administer estate (M Bakos)

Appearance is required for continued hearing on petition to administer estate.

This matter was continued from the November 21, 2025, probate law and motion calendar to the May 15, 2025, probate law and motion calendar. Although the court indicated one purpose of the May 15 hearing would be possible referral to a trial assignment conference calendar, this matter has not been scheduled for any trial assignment conference or trial.

Will contest (E Vlk)

Appearance is required for continued hearing on petition to administer estate.

Missing 30 days' service of summons to all persons entitled to service of notice of the petition to probate the will.

**8. S-PR-0013069 In Re the Estate of Haddox, Steven Warren**

Appearance is required for hearing on petition to probate lost will after appointment of administrator on grounds of intestacy.

Notice of hearing as filed, served, and published omits ¶ 4 concerning admission of a will to probate.

Missing required "written statement of the testamentary words or their substance" of the lost will. Prob.C. § 8223.

Missing required allegations at ¶ 5b (step- or foster child(ren)).

Clarification is needed: ¶ 6f alleges no issue of parents (¶ 6b) or of grandparents (¶ 6d); ¶ 8 alleges decedent was survived by two nephews and a niece. Nieces and nephews are issue of both parents and grandparents.

**9. S-PR-0013228 In Re the Estate of Meinzer, Lance**

Appearance is required for continued hearing on petition to determine estate property.

**10. S-PR-0013359 In Re the James Brewer Spec Needs Trust**

Petition to compel trustee account, remove trustee, appoint successor

Appearance is required for continued hearing on petition to compel trustee account, remove trustee, and appoint successor.

Amended petition to disallow or surcharge attorney fees

Appearance is required for hearing on amended petition to disallow attorney fees and / or surcharge fees.

Missing verification by petitioner. Prob.C. § 1021. Notwithstanding petitioner's characterization of this proceeding as an amended motion or relief, the proceeding is a petition for relief under Prob.C. § 17000 et seq., and petitioner's verification is required.

Petition to compel revised account, surcharge trustee, sanctions

Appearance is required for hearing on petition to compel revised account, surcharge trustee, and for sanctions.

Missing verification by petitioner. Prob.C. § 1021. Notwithstanding petitioner's characterization of this proceeding as an amended motion or relief, the proceeding is a petition for relief under Prob.C. § 17000 et seq., and petitioner's verification is required.

Clarification is needed: petitioner refers to a will contest filed as S-PR-0010941, *In re the Redmond 1996 Family Trust*. Petitioner alleges said will contest was filed September 2021. S-PR-0010941 was a trust contest filed in June 2021.

**11. S-PR-0013390 In Re the Astleford Rev Liv Trust**

Appearance is required for continued hearing on petition to determine trust terms and for other relief.

Current status is needed.

**12. S-PR-0013402 In Re the Estate of Avanzino, Patricia L.**

Petition for final distribution is recommended for approval as prayed.

**13. S-PR-0013612 In Re the Julius C Gabriele Liv Trust**

It is recommended the petition to determine trust terms and to instruct trustee be continued to be heard with trustee's pending motion for summary judgment.

**14. S-PR-0013703 In Re the Estate of Sanchez, Arthur Richard Jr.**

Appearance is required for continued hearing on petition to administer estate.

**15. S-PR-0013722 In Re the Donald R. Hay 2016 Fam Trust**

Petition to confirm trustee, invalidate actions of purported trustee, instructions, determination of trust property, recovery of trust property and for other relief

Appearance is required for continued hearing on petition to confirm trustee and for other relief.

Missing service to AIM Realty, Inc.; notice should be required to agent for service or a suitable director or officer of AIM Realty, Inc.

Current status—including status of mediation—is needed.

Petition to remove trustee, appoint successor co-trustees, compel accounts and for other relief

Appearance is required for hearing on petition to remove trustee, appoint successor co-trustees, and for other relief.

Missing notice of hearing. Missing service of notice of hearing.

**16. S-PR-0013801 In Re the Escobar Rev Liv Trust**

Appearance is required for continued hearing on petition to rescind / reform trust and for other relief.

Notices of hearing filed on form DE-115 do not adequately describe any personal property at issue. The reference to unspecified "accounts" does not appear to be "[a] description of the subject property sufficient to provide adequate notice to any party who may have an interest in the property." Prob.C. § 851(c)(1). Although counsel for trustee waived this defect at the prior hearing, notice appears to be insufficient as to Nathan Roeder, Aaron Escobar, Steven Roeder, and Madison Torosyan.



## 17. S-PR-0013961 In Re the Hammack Liv. Trust

It is recommended the petition to determine trust property be denied.

Transfer of real property to a trust or creation of a trust for real property requires a writing. See Prob.C. § 15200(a)–(b); see also *Estate of Heggstad* (1993) 16 Cal.App.4th 943; *Ukkestad v. RBS Asset Finance Inc.* (2015) 235 Cal.App.4th 156. Petitioner offers no writing by decedent settlor establishing that his interest in the subject property was transferred to any trust. Because the property is not described in the trust or either trust restatement, the requested relief falls outside the reach of *Heggstad*.

Relief is not available under *Kucker v. Kucker* (2015) 92 Cal.App.4th 90 for at least two reasons. First, *Kucker* concerned transfer of personal property to a trust, not transfer of real property of a trust. *Id.* at 92 & 95. Second, *Kucker's* discussion of the effect of general assignment language without a description of specified real property is both merely dicta (see *Ukkestad v. RBS Asset Finance Inc.* (2015) 235 Cal.App.4th 156, 163 n. 7) and is contrary to petitioner's argument: under the *Kucker* dicta, real property is *not* effectively transferred to a trust unless the assignment language "describe[s] the real property so that it could be identified." *Id.* at 95. The general assignment language here does not describe any real property in a manner in which it can be identified.

Nor is relief available under *Ukkestad*, *supra*. In *Ukkestad*, the court determined that an all-real-property funding clause can satisfy the statute of frauds to create a trust in real property not identified in the writing but which can be defined by extrinsic evidence such as real property records. *Ukkestad, supra*, 235 Cal.App.4th at 162–163. However, the trust provision in *Ukkestad* "assigned the ownership of all of [settlor's] real property to the trustees of the Trust *effective immediately*." *Id.* at 159 (emphasis added). *Ukkestad* did not involve after-acquired property and so does not hold that property acquired contrary to the trust after execution of the purported funding instrument is trust property. Petitioner does not allege when decedent settlor acquired his interest in the subject property, but concedes settlor did not own the real property when the trust—including the general assignment document—was executed and / or restated.

Relief also cannot be granted under the pour-over will. "In the absence of any transfer to [a] trust prior to [decedent's] death," assets become part of the decedent's estate despite will language expressing decedent's desire that assets be held in trust. *Placencia v. Strazicich* (2019) 42 Cal.App.5th 730, 735 & 743–744 (emphasis added). "It [is] error for the court to award [such property] directly to [a] trust in the absence of a probate proceeding." *Id.*, citing *Estate of Hart* (1957) 151 Cal.App.2d 271, 280–281. See also Prob.C. § 7001. "[A] probate court ha[s] no power to consider the legality of a will until it [is] regularly brought before it by a petition for its probate." *Estate of Burnett* (1935) 6 Cal.App.2d 116, 123.

These calendar notes are not a tentative ruling by the court on the merits of the petition. They are provided to assist the court and the parties to prepare for the hearing. Local Rule 80.1.4.

**18. S-PR-0013962 In Re the Estate of Coulibaly, Soungalo**

Spousal property petition is recommended for approval as prayed.

**19. S-PR-0013963 In Re the Estate of Jacobs, Carol J.**

Court determination is needed as to request to waive service of notice to Jeffrey Jacobs.

Missing required allegations at ¶¶ 5a(3)–(4) (RDP) and (7)–(8) (issue of predeceased child(ren)).

Missing declaration re terms of beneficiary trust (or authenticated copy of beneficiary trust). Local Rule 80.2.1. The information in ¶ 8 / Attachment 8 is insufficient to satisfy Local Rule 80.2.1.

**20. S-PR-0013964 In Re the Estate of Ceccarelli, Victor Anthony**

Court determination is needed: petitioner published notice of hearing in the Placer Herald, a newspaper circulated in Rocklin, rather than in the Lincoln News Messenger, a newspaper circulated in Lincoln. Decedent's place of residence, Sheridan, is not a city and is located nearest to the city of Lincoln. See Prob.C. § 8121(b). Court to determine whether revised publication shall be required.

Petitioner has not established priority for appointment as administrator with will annexed; it appears decedent's surviving spouse has priority for appointment. See Prob.C. §§ 8400(a), 8461(a)–(b) & 8465(a)(1). Surviving spouse's failure to claim appointment may constitute a waiver of the right to appointment. See Prob.C. § 8468.

Missing waivers of bond by suitable fiduciary for Thomas Ceccarelli, Logan Ceccarelli, and Isabella Ceccarelli. The petition for appointment of administrator with will annexed and to probate the will does not include a final determination of any rights to succession; waivers of bond are ordinarily required of all devisees and all heirs.

**21. S-PR-0013971 In Re the Estate of Field, Jonathan Wayne**

Notice of hearing as filed, served, and published, omits ¶ 5 concerning IAEA powers. Petitioner requests full IAEA powers in the petition.

Missing original will. Prob.C. § 8200(a).

Missing required allegations at ¶¶ 5a(3)–(4) (RDP), (7)–(8) (issue of predeceased child(ren)), and 5b (step- or foster child(ren)).

Clarification is needed: petitioner alleges decedent was survived by child(ren) (¶ 5a(5)), but also that decedent was not survived by any issue, issue of parents, or issue of

grandparents (¶¶ 6, 6b, 6d, 6f). Children of decedent are issue, issue of parents, and issue of grandparents.

Missing relationship of persons listed in ¶ 8 to decedent.

Declaration of petitioner is insufficient to satisfy the requirements of Local Rule 80.2.1. Declaration setting forth trustees, successor trustees, and beneficiaries of beneficiary trust (or authenticated copy of beneficiary trust) is needed.

Note: missing signed Duties form (DE-147). The clerk cannot issue letters until the signed Duties form is filed. C.R.C. 7.150.